

HOUSE No. 4610

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 20, 2025.

The committee on Public Health, to whom was referred the petition (accompanied by bill, House, No. 2467) of Meghan K. Kilcoyne for legislation to establish an interagency committee to study decriminalizing sex work, reports recommending that the accompanying bill (House, No. 4610) ought to pass.

For the committee,

MARJORIE C. DECKER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to study the decriminalization of sex work.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 272 of the General Laws is hereby amended by adding after section 53B the
2 following section, which shall be titled “Interagency commission to study the decriminalization
3 of sex work in the Commonwealth”:-

4 Section 53C. Interagency Commission to Study the Decriminalization of Sex Work in the
5 Commonwealth.

6 (a) There shall be an interagency commission to study the decriminalization of sex work
7 in the Commonwealth. The commission shall consist of 23 members: the secretary of health and
8 human services or a designee, who shall serve as chair; the commissioner of public health or a
9 designee; the secretary of labor and workforce development or a designee; the secretary of
10 housing and livable communities or a designee; the commissioner of children and families or a
11 designee; the attorney general or a designee; the president of the Massachusetts District
12 Attorneys Association or a designee; 15 members appointed by the secretary of health and
13 human services or a designee, 1 of whom shall be a representative from an organization focused

on advocacy for sex workers, 1 of whom shall be a representative from an organization focused on advocating for transgender people and racial justice, 5 of whom shall be survivors or direct service providers from organizations representing survivors of trafficking for sexual servitude across regions of the commonwealth¹ of whom shall be a representative from the Boston Area Rape Crisis Center, 1 of whom shall be a representative from the American Civil Liberties Union of Massachusetts, 1 of whom shall be a representative from an organization focused on harm reduction related to substance use, 1 of whom shall be a representative from an organization focused on advocating for legal defense and bonds for undocumented people, 1 of whom shall be a representative from the Committee for Public Counsel Services, and 3 of whom shall be current or former sex workers. Adequate compensation for services shall be determined by a schedule of fees adopted by the commission.

(b) The commission shall be responsible for studying and making recommendations towards the following: (i) what criminal penalties and collateral consequences exist related to the criminalization of sex work, including criminal penalties for buyers of commercial sex; (ii) what labor protections need to be in place under decriminalization; (iii) what services need to be made available to people engaged in commercial sex to improve health and safety outcomes; (iv) the methods of human trafficking and exploitation in order to develop strategies to reduce these activities in collaboration with sex workers, with a focus on prevention; (v) implementation models for alternatives to policing to promote safety in the commercial sex sector, rooted in public health; and (vi) the development of a fund to prevent, reduce, prevent, and eliminate human trafficking that shall include ways to support the health, safety, and autonomy of sex workers.

36 (c) The first meeting of the commission shall take place within 90 days of the effective
37 date of this act. The commission shall file a report containing its findings and recommendations,
38 including legislative recommendations, if any, with the clerks of the house of representatives and
39 the senate, the house and senate committees on ways and means and the joint committee on
40 public health no later than December 31, 2026.